

FEDERAL MARITIME COMMISSION

DOCKET NO. 25-03

EUROMARKET DESIGNS INC.

V.

MSC MEDITERRANEAN SHIPPING COMPANY, S.A., ET AL.

**RESPONDENT WAN HAI LINE LTD.'s
MOTION TO STAY PROCEEDING, FOR THE FILING OF AN AMENDED
COMPLAINT, AND FOR PARTIAL DISMISSAL**

Joshua P. Stein
Kathryn Sobotta
Rachel Schwartz
COZEN O'CONNOR
2001 M Street, NW
Suite 500
Washington, DC 20036
jstein@cozen.com
ksobotta@cozen.com
rschwartz@cozen.com

February 3, 2025

FEDERAL MARITIME COMMISSION

DOCKET NO. 25-03

EUROMARKET DESIGNS INC.

V.

MSC MEDITERRANEAN SHIPPING COMPANY, S.A., ET AL.

**RESPONDENT WAN HAI LINES LTD.'s
MOTION TO STAY PROCEEDING AND FOR PARTIAL DISMISSAL**

Respondent Wan Hai Lines Ltd. (“Wan Hai”), through undersigned counsel, hereby moves pursuant to 46 C.F.R. §§ 502.69, 502.70, and 502.71, for:

1. A stay of this proceeding until the final conclusion of the matter remanded to the Commission by *Evergreen Shipping Agency (America) Corp. v. Federal Maritime Commission*, No. 23-1052 (D.C. Cir. 2024); and

2. Dismissal with prejudice Complainant’s claim under 46 U.S.C. § 41104(a)(10).

A memorandum in support of these motions is submitted herewith.

Pursuant to 46 C.F.R. § 502.71, undersigned counsel has conferred with counsel for Complainant, who advises that Complainant will oppose this Motion.

Respectfully submitted,

COZEN O'CONNOR

By: s/ Joshua P. Stein

Joshua P. Stein

Kathryn Sobotta

Rachel Schwartz

Cozen O'Connor

2001 M. St., NW

Suite 500

Washington, D.C. 20036

jstein@cozen.com

ksobotta@cozen.com

rschwartz@cozen.com

Counsel for Respondent, Wan Hai Lines Ltd.

Dated: February 3, 2025

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing was served upon the following via email transmission this 3rd day of February, 2025.

Karl Huth, Esq. (huth@huthreynolds.com)
Matthew Reynolds, Esq. (reynolds@huthreynolds.com)
Gregory Crapanzano, Esq. (gcrapanzano@huthreynolds.com)
Luke Rushing, Esq. (jlushing@huthreynolds.com)
Counsel for Complainant EuroMarket Designs, Inc.

Garth Wolfson, Esq. (gwolfson@mahoneykeane.com)
Edward Keane, Esq. (ekeane@mahoneykeane.com)
Counsel for Respondents Evergreen Line Joint Service Agreement (FMC #011982),
Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Maritime
SpA, Evergreen Marine (Hong Kong) Ltd. and Evergreen Marine (Singapore) Pte. Ltd.

George Wright, Esq. (gwright@wright-associate.com)
Narinder Parmar, Esq. (nsparmar@wright-associate.com)
Counsel for Respondent Maersk A/S

W. Ryan Snow, Esq. (wrsnow@cwm-law.com)
K. Barrett Luxhoj, Esq. (kbluxhoj@cwm-law.com)
Mackenzie R. Pensyl, Esq. (mpensyl@cwm-law.com)
Counsel for Respondent CMA CGM S.A.

Steven Stancliff, Esq. (sstancliff@ventkerlaw.com)
James Levantino, Esq. (jlevantino@ventkerlaw.com)
Counsel for Respondent Ocean Network Express PTE Ltd.

Wayne Rohde, Esq. (wrohde@cozen.com)
Joshua Stein, Esq. (jstein@cozen.com)
Christopher Raleigh, Esq. (craleigh@cozen.com)
Neil Quartaro, Esq. (nquartaro@cozen.com)
Kathryn Sobotta, Esq. (ksobotta@cozen.com)
Rachel Schwartz, Esq. (rschwartz@cozen.com)
Counsel for Respondents HMM Co, Ltd. and Wan Hai Lines Ltd.

/s/Joshua P. Stein
Joshua P. Stein